

VCU320097 Jasmin Megana Delgado, Jacquelin vs. Ruiz Food Products, Inc. et al

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-21

Motion: Plaintiff's Motions to Compel Further (1) Special Interrogatories, Set One as to Defendant Ruiz Food Products, Inc., (2) Requests for Production, Set One as to Defendant Ruiz Food Products, Inc., (3) Special Interrogatories, Set One as to Defendant Ruiz Food Exports, Inc., and (4) Requests for Production, Set One as to Defendant Ruiz Food Exports, Inc.,

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Re: Jasmin Megana Delgado, Jacquelin vs. Ruiz Food Products, Inc. et al

Case No.: VCU320097

Date: July 21, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiff's Motions to Compel Further (1) Special Interrogatories, Set One as to Defendant Ruiz Food Products, Inc., (2) Requests for Production, Set One as to Defendant Ruiz Food Products, Inc., (3) Special Interrogatories, Set One as to Defendant Ruiz Food Exports, Inc., and (4) Requests for Production, Set One as to Defendant Ruiz Food Exports, Inc.,

Tentative Ruling: (1) through (4): To find the motions to compel further responses moot; to issue sanctions against Defendant Products, and its counsel of record, jointly and severally in the amount of \$1,520; to issue sanctions against Defendant Exports, and its counsel of record, jointly and severally in the amount of \$1,520; Sanctions are due no later than thirty (30) days from the date of this hearing.

(1) through (4) - Facts and Analysis

In this class action and PAGA matter, Plaintiff alleges, via the amended complaint, causes of action for:

1. Failure to Pay Minimum Wages [Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197];
2. Failure to Pay Overtime Compensation [Cal. Lab. Code §§ 1194 and 1198];
3. Failure to Provide Meal Periods [Cal. Lab. Code §§ 226.7, 512];

4. Failure to Authorize and Permit Rest Breaks [Cal. Lab. Code §§ 226.7];
5. Failure to Indemnify Necessary Business Expenses [Cal. Lab. Code § 2802];
6. Failure to Timely Pay Final Wages at Termination [Cal. Lab. Code §§ 201-203];
7. Failure to Provide Accurate Itemized Wage Statements [Cal. Lab. Code § 226];
8. Unfair Business Practices [Cal. Bus. & Prof. Code §§ 17200, et seq.]; and
9. Civil Penalties Under PAGA [Cal. Lab. Code § 2699, et seq.].

On July 7, 2025, Plaintiff propounded Special Interrogatories, Set No. One and Requests for Production, Set No. One on Defendants Ruiz Food Products, Inc. ("Defendant Products") and Ruiz Food Exports, Inc. ("Defendant Exports").

Defendant served responses on August 8, 2025, consisting of objections of vague, ambiguous, not reasonably calculated to lead to the discovery of admissible information, compound, unduly burdensome, oppressive, confidentiality, attorney-client privilege and work product, and that Plaintiff is subject to an arbitration agreement that includes a class waiver.

The parties appear to have met and conferred and extended the deadline to file these motions to compel further a number of times, including up to June 5, 2026.

Plaintiff seeks to compel further responses to the discovery at issue and for sanctions in the amount of \$3,025 as to each motion to compel further responses to interrogatories, \$3,025 as to the motion to compel further responses requests for production as to Defendant Exports and \$6,267.26 as to the motion to compel further responses requests for production as to Defendant Products

Defendant indicates, in opposition to these motions: "Following the filing of the instant Motions, the parties met and conferred further regarding the Motions as well as efforts to mediate this matter. Defendants agreed to supplement their responses to discovery, as it does not intend to enforce its arbitration agreement, and to mediate this matter."

As such, the motions to compel further responses are moot by the service of supplemental responses.

Sanctions

California Rules of Court rule 3.1348, which provides the Court with discretion to "award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409 [citing to California Rules of Court rule 3.1030, which was renumbered as Rule 3.1348].)

The Court does not find that the objection under the mere presence of an arbitration agreement that Defendants now do not seek to enforce is a sufficient substantial justification for delaying substantive responses to discovery.

Plaintiff seeks sanctions in the amount of \$3,025 as to each motion to compel further responses to interrogatories, \$3,025 as to the motion to compel further responses requests for production as to Defendant Exports and \$6,267.26 as to the motion to compel further responses requests for production as to Defendant Products

Plaintiff's counsel notes a rate of \$550 per hour and filing fees of \$79.76 per motion.

The Court will set the hourly rate at \$350. The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court." (Id.)

Further, the filing cost per motion is \$60.

The Court will award sanctions as follows, jointly and severally against Defendants and their counsel of record as follows:

Defendant Exports, and counsel of record: Total sanctions of \$1,520, consisting of 2 hours for each motion at the rate of \$350 per hour, plus \$120 in filing fees.

Defendant Products, and counsel of record: Total sanctions of \$1,520, consisting of 2 hours for each motion at the rate of \$350 per hour, plus \$120 in filing fees.

Sanctions are due no later than thirty (30) days from the date of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.